

25STCV03075 25STCV03075

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV03075 Hearing Date: August 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

14, 2026 TRIAL DATE: April 5, 2027

CASE: Ana

Rodriguez v. 120 N. Westlake, LLC

CASE NO.: 25STCV03075

PLAINTIFF'S

MOTION FOR SUMMARY JUDGMENT

OR

IN THE ALTERNATIVE SUMMARY ADJUDICATION

MOVING

PARTY: Plaintiff Ana

Rodriguez

RESPONDING PARTY: Defendant 120 N. Westlake, LLC

Plaintiff, Ana Rodriguez, is a

tenant of the unit located at 1405 ½ Menlo Street, Los Angeles, CA 90006 (the "Property"). Plaintiff's tenancy at the Property is regulated

by the Los Angeles Rent Stabilization Ordinance ("LARSO"). In 2024, Defendant, 120 N. Westlake LLC,

purchased the Property. Plaintiff alleges that, between 2014 to 2026, the prior owners of the Property improperly increased Plaintiff's rent in excess of the allowable rates allowed under the LARSO. Plaintiff now brings this action against Defendant to recover all rent overpayments and civil penalties in the total amount of \$248,160.63. Plaintiff also seeks a judicial declaration that her rent has never been legally increased beyond the amount of \$950.00, that her current rent is \$950.00 a month, and that Plaintiff over-paid rent in the amount of \$73,030.31 for the period of April 2014 through February 2025.

I. BACKGROUND

On February 4, 2025, Plaintiff filed a Complaint against Defendant for violation of Los Angeles Municipal Code (LAMC) §§ 151.04, 151.10 and declaratory relief.

On February 24, 2026, Plaintiff filed this motion for summary judgment, or in the alternative, summary adjudication.

On April 30, 2026, Defendant filed an opposition.

On August 3, 2026, Plaintiff filed a reply.

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II. LEGAL STANDARD

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." *¿* (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c(c).) *¿* A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of

its cause of action. (Code Civ. Proc., § 437c(p)(1); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.)² The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue or a defense thereto.³ (Code Civ. Proc., § 437c(p)(1).)

Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”⁴ (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)⁵ However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law.⁶ (Code Civ. Proc., § 437c(c); *Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)⁷

III. JUDICIAL NOTICE

Plaintiff's

request for judicial notice is GRANTED.

IV. EVIDENTIARY OBJECTIONS

Defendant

submits twelve (12) objections to the declaration of Ana Rodriguez and nine (9) objections to the declaration of Alanna Holt.

Plaintiff

submits five (5) objections to the declaration of Christian Limon and exhibits attached thereto.

The court declines to rule on these objections as they are not material to the Court's ruling. (Code Civ. Proc., § 437c(q).)

V. DISCUSSION

For the reasons stated herein, the court concludes that Plaintiff is not entitled to summary judgment or summary adjudication as a matter of law.

A. Violation of LAMC §§
151.04, 151.10 (1st COA)

Plaintiff argues that, in 2014, a prior landlord increased her rent beyond the limits imposed by the LARSO, rendering every subsequent rent increase unlawful. For this reason, Plaintiff seeks an award of \$248,160.63 which consists of \$82,720.21 in purported rent overpayments from 2014 to present and damages of three times the overpayment amount.

The Los Angeles Rent Stabilization Ordinance (LARSO) is codified in Chapter XV, Article 1, Sections 151.00 et seq. of the LAMC. Section 151.04 states, in part, "It shall be unlawful for any landlord to demand, accept, or retain more than the maximum adjusted rent permitted pursuant to this chapter or regulation or orders adopted pursuant to this chapter." (LAMC § 151.04(A).)

LAMC

section 151.1 further provides, "Any person who demands, accepts or retains any payment of rent in excess of the maximum rent or maximum adjusted rent in violation of the provisions of this chapter, or any regulations or orders promulgated hereunder, shall be liable in a civil action to the person from whom such payment is demanded, accepted or retained for damages of three times the amount by which the payment or payments demanded, accepted or retained exceed the maximum rent or maximum adjusted rent which could be lawfully demanded, accepted or retained together with reasonable attorneys' fees and costs as determined by the court." (LAMC §151.10(A).)

Assuming, arguendo, Defendant's liability, Plaintiff fails to establish this damages amount against Defendant. It is undisputed that Defendant began collecting rent from Plaintiff in 2024. Thus, contrary to Plaintiff's position, Plaintiff cannot recover from Defendant any alleged rental overpayments prior to Defendant's ownership of the Property in 2024. Plaintiff resists this outcome by relying on *Baychester Shopping Center, Inc. v. San Francisco Residential Rent Stabilization and Arbitration Bd. of City and County of San Francisco* (2008) 165 Cal.App.4th 1000 (*Baychester*). Plaintiff cites *Baychester* for the proposition that a landlord is liable for his or her predecessor's overcharges. That reliance is misplaced. *Baychester* was based on San Francisco's rent control ordinance which allows a plaintiff to recover rental overpayments from the successor landlord. Plaintiff fails to point to any like

provision in the LARSO. Rather, a plain reading of the LARSO makes clear that a landlord is liable for the excess rent that is demanded, accepted, or retained. As discussed above, Defendant began demanding, accepting, or retaining any purported excess rent in 2024. Plaintiff fails to establish she is entitled to damages in the sum of \$248,160.63 from Defendant. On this ground alone, the motion fails.

B. Declaratory Relief (2nd COA)

As stated in the notice of motion, Plaintiff seeks a judicial declaration that Plaintiff's

rent has never been legally increased beyond the amount of \$950.00 per month. The request is procedurally improper.

"A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c(f)(1).)

Here, Plaintiff seeks a determination of "(a) the actual and legally correct amount of the present monthly rent, (b) the amount that should be credited to the tenant ledger arising from current and previous excess rent payments, illegal rent increases, and unauthorized overcharges, and (c) the nature and amount of any consequent sums that should be reimbursed or disgorged to the Plaintiff." (Complaint, ¶ 26.) Thus, granting the motion on the noticed issue of Plaintiff's legally correct rent would leave unanswered items (b) and (c) and critically, not dispose of the entire cause of action.

V. CONCLUSION

Based on the foregoing, the motion for summary judgment, or in the alternative, summary adjudication is DENIED.

Plaintiff is ordered give notice, unless waived.

Dated: August 14, 2026

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¿ Brock T. Hammond

¿ Judge of the Superior
Court¿¿